

Re: Public Records Act request — grand jury responses on file under Penal Code § 933(c) (2016-17 report)



From Brian C <____ >
To Julieta Fernandez <JFernandez@smcacre.gov>
Date 2026-08-23 01:14

Good afternoon Julieta,

Thank you for the quick determination. I am recording your August 20 message as your office's response to my August 18 request, with item 1 answered as no records.

One further request under the Act, which should be a small one:

1. Any response filed pursuant to Penal Code section 933 to any San Mateo County Civil Grand Jury report, of any report year, that is on file with your office. A single example is sufficient for this purpose -- the most recent one the office holds. If the office holds no such responses for any report year, please state that.
2. The records retention schedule or policy covering responses to civil grand jury reports received by your office.

The reason for the narrow first item is that your message can be read two ways: that no responses to this particular 2017 report are on file, or that the office does not maintain grand jury responses generally. One example, or a statement that there are none for any year, settles which.

My August 20 message also asked that, if responses filed under section 933(c) are maintained by a different County office, you identify that office. If you can point me to it, I will direct my request there.

Thank you,
Brian

On 2026-08-20 14:26, Julieta Fernandez wrote:

Good afternoon, Brian.

Your public records request was forwarded to me for response.

The San Mateo COUNTY Clerk does not maintain or have custody of the report referenced in your request. The report identified in the link below is available through the San Mateo County Superior Court's website. Accordingly, I recommend that you direct your request regarding this report, or any related court records, to the COURT Clerk of the San Mateo County Superior Court:
<https://sanmateo.courts.ca.gov/>

For your convenience, the report may be accessed through the Court's website at the link below:

A Delicate Balance: Privacy vs. Protection [1]

Sincerely,

Julieta Fernandez

Office of Mark Church

Assessor-County Clerk-Recorder &

Chief Elections Officer

555 County Center

Redwood City, CA 94063

650.363.4779 direct

650.780.9952 fax

jfernandez@smcacre.gov

www.smcacre.gov [2]

From: Brian C <____ >
Sent: Tuesday, August 18, 2026 11:45 PM
To: ACRE_CLK_CountyClerkWebMail <countyclerk@smcacre.gov>
Subject: Public Records Act request -- grand jury responses on file under Penal Code § 933(c) (2016-17 report)

CAUTION: This email originated from outside of San Mateo County. Unless you recognize the sender's email address and know the content is safe, do not click links, open attachments or reply.

Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following records from the Office of the County Clerk. This request seeks existing records only (Gov. Code § 7922.530).

As you are aware, Penal Code section 933(c) provides that a copy of all responses to grand jury reports shall be placed on file with the office of the county clerk and shall remain on file in that office.

1. All responses filed pursuant to Penal Code section 933 to the 2016–2017 San Mateo County Civil Grand Jury report "A Delicate Balance: Privacy vs. Protection" (filed July 12, 2017) -- the response letters or resolutions of each responding agency, including the City of San Mateo.

If responses to this report are not on file, please state so; if responses are on file for some agencies but not others, please identify which. If any portion is denied, please provide exemption citations per Gov. Code § 7922.540.

Please acknowledge receipt of this request so the record reflects the date received.

Thank you,

Brian

Links:

[1] <https://sanmateo.courts.ca.gov/system/files/surveillance.pdf>

[2] <https://protect-us.mimecast.com/s/DcQSC73yp8c49GAQhNSw0-/>